

Granite Heron's Posttrial Reply

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United States District Court for the Western District of North Carolina Blue Ember Biologics, LLC v. Granite Heron Logistics, Inc. Civil Action No. SYN-WDNC-24-CV-0520

Granite Heron accepts that the preservation dispute turns on the exact October motions. They challenged causation only, said mitigation would remain for the jury, and did not request a directed 1.5-million-dollar deduction. The carrier does not ask the Court to find different words in those filings.

It argues instead that avoidable delay is a narrower measure of the loss causally attributable to the breach, so the renewed request concerns the same damages issue despite a different evidentiary route. Blue Ember responds that an expressly excluded affirmative defense cannot become the same ground after verdict. The reply submits that legal question for decision without relying on a general reservation.

If the Court finds the issue unpreserved, Granite Heron acknowledges that Rule 50 judgment on mitigation is unavailable. The independent Rule 59 request remains. Its timing, evidentiary basis, and requested damages-only scope do not depend on the Court accepting the carrier's renewal argument.

Weight of the mitigation record

Blue Ember emphasizes uncertainty but understates the concrete features of the opportunity. Cobalt Finch held an identified suite, possessed relevant equipment and personnel, found no fatal incompatibility, proposed specific transfer milestones, and estimated incremental cost. The November readiness gate preserved quality review rather than requiring uncontrolled production.

Granite Heron does not claim a guarantee. It contends reasonable mitigation is assessed under uncertainty and that staged diligence could manage downside while preserving substantial timing value. Another sponsor's booking confirms scarcity, and the actual March 3 campaign supplies the schedule comparison.

The jury's 300,000-dollar net deduction assigned too little weight to this combined proof, according to the carrier. Park's 1.8-million-dollar avoidance left residual disruption and used Brooks's risk-adjusted base. Subtracting the full 300,000-dollar alternative estimate yielded a 1.5-million-dollar net figure without touching direct cost. At minimum, Granite Heron argues, the clear weight requires a new financial trial.

Independent new-trial ground and limited scope

Rule 59 permits the Court to weigh evidence and order a new trial when a verdict is against the clear weight or would work an injustice. That authority does not require the Rule 50 ground to have been preserved. The carrier timely joined its alternative request within twenty-eight days of the October 15 judgment.

The requested retrial should cover gross damages and mitigation, not liability or shipment causation. The special verdict fixed contract formation, breach, and causal responsibility before itemizing financial consequences. A new jury can apply those settled premises while reevaluating original-lot value, replacement expense, delay, and avoidable loss.

Gross delay and mitigation must be tried together because the latter cannot exceed caused loss and must account for incremental alternative cost. Keeping them together avoids mismatched assumptions. Retrying the Fletcher event would add expense and risk inconsistency without assisting the financial comparison. Granite Heron therefore maintains a bounded scope even though it seeks relief from the award.

Conclusion

Granite Heron asks the Court to grant Rule 50(b), set the net mitigation deduction at 1.5 million dollars, and amend the 3.9-million-dollar judgment to 2.7 million dollars. If the Court grants that relief, it should conditionally determine under Rule 50(c) that a damages-only new trial is warranted if JMOL does not stand.

Alternatively, the Court should deny JMOL only on preservation grounds and grant a new trial under Rule 59 because the 300,000-dollar verdict deduction and gross award are against the clear weight of the evidence. Liability and causation should remain intact.

The reply does not add evidence, revise the October motion text, or propose an event outside the actual docket. It distinguishes the legal renewal argument from the independent weight-of-evidence request. Counsel certifies service on Blue Ember's attorneys on December 1, 2025 and requests oral argument focused on preservation, the mitigation record, and conditional relief.